

Brown vs. Board of Education

The case that came to be known as *Brown vs. Board of Education* was the name given to represent five separate cases that were heard by the U.S. Supreme Court concerning the issue of segregation in public schools. These cases were:

- *Brown vs. Board of Education of Topeka*
- *Briggs vs. Elliot*
- *Davis vs. Board of Education of Prince Edward County*(VA)
- *Boiling vs. Sharpe*
- *Gebhart vs. Ethel*

At issue in each was the constitutionality of state-sponsored segregation in public schools. Thurgood Marshall and the NAACP Legal Defense and Education Fund handled these cases.

Not finding satisfaction at the district court level, the plaintiffs appealed to the U.S. Supreme Court in 1952, and the court consolidated all five cases under the name of *Brown vs. Board of Education*. Marshall personally argued the case before the court. Many legal issues were raised, but the predominant one was that separate school systems for Black and white people were inherently unequal, and thus violated the "equal protection clause" of the 14th Amendment to the U.S. Constitution. Marshall also presented data from social scientist Kenneth Clark and others that showed that segregated school systems had a tendency to make Black children feel inferior to white children, and thus such a system should not be legally permissible.

Most of the justices of the Supreme Court wanted to reverse *Plessy* and declare segregation in public schools to be unconstitutional but were unable to reach a decision by June 1953 (the end of the court's term). The court reheard the case in December 1953, after the death of Chief Justice Fred Vinson, who was replaced by Gov. Earl Warren of California. Under Chief Justice Warren, all of the justices agreed to support a unanimous decision declaring segregation in public schools unconstitutional. On May 14, 1954, Warren delivered the opinion of the court, stating that, "We conclude that in the field of public education the doctrine of 'separate but equal' has no place. Separate educational facilities are inherently unequal."

Because it anticipated opposition to the ruling, especially in the South, the court did not dictate how desegregation would be carried out, or when. It merely asked the attorneys general of all states that allowed segregation in their public schools to submit plans for how they would implement desegregation. On May 31, 1955, one year after the court's decision, the justices disseminated a plan that called for "all deliberate speed" in the desegregation process. Although it would be many years before all desegregation was fully implemented, *Brown* and " *Brown II*," as the court's rehearing of the case was called, paved the way.